

File No.: EXP202301220

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on January 21, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of Article 13 of the GDPR and Article 6.1 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that they are a neighbor of the respondent and that the respondent has installed a video surveillance system at the entrance of their home that points towards the glass of the party wall separating the homes, capturing images and sounds from their home, being a camera that, due to its location and orientation, is capable of capturing images of the public road that runs alongside the respondent's home.

The complainant provides images of the camera locations and two videos of what was captured by this system.

The submitted documents are:

- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party; the forwarding was reiterated on March 3, 2023, by certified postal mail, and was again returned marked "absent."

THIRD: On April 21, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

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FOURTH: On July 27, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 13 of the GDPR and Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) on August 30, 2023, through the Single Edict Board, as the attempt at postal notification resulted in absence at the address, and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent. Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts underlying the accusation, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made any allegations regarding the initiation agreement of the file and in

accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: It is established that the camera installed by the respondent is recording sounds, including the voices of individuals present in the complainant's home, without having the legitimacy to do so.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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II

The voice of a person, in accordance with Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. In this same sense, the Judgment No. 815/2020 of Chamber III of the Supreme Court states (the underlining corresponds to the AEPD):

(...) Article 3.a) of the Organic Law on the Protection of Personal Data (15/1999) established that personal data should be understood as "any information concerning identified or identifiable natural persons." For its part, Article 5 of the Regulation (Royal Decree 1720/2007, of December 21), which contains the definitions of the terms for the purposes of its application, defines in its section 1.f) personal data as "any numerical, alphabetical, graphical, photographic, acoustic or any other type of information concerning identified or identifiable natural persons" (...)

Article 4.2 of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction."

It is therefore pertinent to analyze whether the processing of personal data (voices of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

"1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the

exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

Regarding processing for the purposes of video surveillance, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of ensuring the safety of persons and property, as well as their facilities.

Under no circumstances shall the use of surveillance practices be permitted beyond the environment subject to the installation and, in particular, shall not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is therefore not permitted. Images in spaces owned by third parties cannot be captured or recorded without the consent of their owners, or, where applicable, of the persons present therein.

In the present case, although the documentation provided indicates that the camera installed by the responding party does not capture images of the claimant's residence nor of the public road, it is recording sounds, including the voices of the persons present in the claimant's residence, without having legitimacy for this.

It is considered that the facts presented violate the provisions established in Article 6.1 of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the limitation period for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

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"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 (...)"

IV

In accordance with the above, the processing of sounds through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by other means that are less intrusive to the rights and freedoms of citizens. Personal data may only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The data obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article

22 of the LOPDGDD must be complied with.

In this regard, Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

The first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the data controller, the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This information must be contained in a device placed in a sufficiently visible location and must be provided in advance.

The information in the second layer must be available in a location easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a website, and must refer to the remaining elements of Article 13 of the GDPR.

4.- The data may be retained for a maximum period of one month, except in cases where it must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities. In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the time knowledge of the existence of the recording is obtained.

5.- The data controller must maintain a record of processing activities carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

6.- The data controller must conduct a risk analysis or, where appropriate, a data protection impact assessment, to detect the risks arising from the implementation of the video surveillance system, evaluate them, and, where appropriate, adopt appropriate security measures.

7.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and Resolutions" / "Regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and Tools" section).

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows assessing the situation of the controller regarding the personal data processing they carry out, and where appropriate, generating various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

V

The installation of a video camera entails the unavoidable obligation to notify the presence of the same through an informative device, in a sufficiently visible location, identifying at least the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided in Articles 15 to 22 of the GDPR.

In this case, although a sign is installed at the entrance door of the residence of the party being claimed, it is blank, without including the mandatory information about the data controller and the address to which to direct requests for the exercise of rights.

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It is considered that the facts presented violate the provisions of Article 13 of the GDPR, which could constitute an infringement classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

(...)

b) the rights of the data subjects pursuant to Articles 12 to 22; (...)."

For the purposes of the statute of limitations, Article 74 "Minor Infringements" of the LOPDGDD indicates:

"Minor infringements shall be considered as such and shall be subject to a one-year statute of limitations for the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following:

a) Non-compliance with the principle of transparency of information or the right to information of the affected party by failing to provide all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to calibrate the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

For all of the above, it is considered that the corresponding sanction is an administrative fine of 500 euros for the infringement of Article 6.1 of the GDPR, and a fine of 300 euros for the infringement of Article 13 of the GDPR.

VII

Article 58.2 d) of the GDPR states that each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...". In this case, the party being claimed must proceed, within 30 days from the receipt of this resolution, to:

- Provide evidence of having removed the camera or video camera system from the current location or adapted it in such a way that it does not capture:
 - Sounds from the adjoining dwelling.

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- Place the informational device in the monitored areas or complete the information provided therein (at a minimum, it must identify the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), positioning this device in a sufficiently visible location, both in open and closed spaces.
- Provide evidence that it maintains the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1

- For an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 500 euros (FIVE HUNDRED euros).

- For an infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days, provide evidence of having complied with

- the removal of the camera or video camera system from the current location or its adaptation in such a way that it does not capture:
 - Sounds from the adjoining dwelling.
- The placement of the informational device in the monitored areas or to complete the information provided therein (at a minimum, it must identify the existence of processing, the identity of the controller, and the possibility of exercising the rights provided in those provisions), positioning this device in a sufficiently visible location, both in open and closed spaces.
- Provide evidence that it maintains the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.

THIRD: NOTIFY this resolution to A.A.A..

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must comply with the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b)

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of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executiveness falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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